

**Indictment, U.S. v. Junius Irving Scales,
November 18, 1954**

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IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF NORTH CAROLINA

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	:	CRIMINAL NO. 4320-G-
<u>UNITED STATES OF AMERICA</u>	:	U.S.C., Title 18, Section 2385 –
/vs./	:	Membership in an organization which
<u>JUNIUS IRVING SCALES</u>	:	teaches and advocates the overthrow
	:	of the Government by force and
	:	violence

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INDICTMENT – filed November 18, 1954

THE GRAND JURY CHARGES:

(1) That during the entire period from in or about January, 1946, and continuously thereafter, up to and including the date of the filing of this indictment, the Communist Party of the United States of America has at all times been a society, group, and assembly of persons who teach and advocate the over-throw and destruction of the Government of the United States by force and violence as speedily as circumstances would permit;

(2) That from in or about January, 1946, and continuously thereafter, up to and including the date of the filing of this indictment, in the Middle District of North Carolina and else-where, JUNIUS IRVING SCALES, the defendant herein, has been a member of said Communist Party of the United States of America, the de-fendant well knowing during all of said period that said Commun-ist Party of the United States of America was and is a society, group, and assembly of persons who teach and advocate the over-throw and destruction of the Government of the United States by force and violence as speedily as circumstances would permit, and said defendant intending to bring about such overthrow by force and violence as speedily as circumstances would permit.

In violation of Section 2385, Title 18, United States Code.

[?] A TRUE BILL

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FOREMAN

Edwin M. Stanley.
EDWIN M. STANLEY
UNITED STATES ATTORNEY

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